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Divinus Perfectionis Magister (January 25, 1983)

APOSTOLIC CONSTITUTION DIVINUS PERFECTIONIS MAGISTER

JOHN PAUL BISHOP SERVANT OF THE SERVANTS OF GOD FOR POSTERITY

The Divine Teacher and Model of Perfection, Christ Jesus, who together with the Father and the Holy Spirit is proclaimed as "alone holy", loved the Church as His bride and delivered Himself up for her so that He might sanctify her and make her glorious in His sight. Thus He gave the commandment to all His disciples to imitate the perfection of the Father and He sends upon all the Holy Spirit, who might inspire them from within to love God with their whole heart and to love one another as He Himself loved them. As the Second Vatican Council teaches, the followers of Christ, called and justified in the Lord Jesus not according to their works but according to His own purpose and grace, through baptism sought in faith truly become sons of God and sharers in the divine nature, and thus truly holy.(1)

In all times, God chooses from these many who, following more closely the example of Christ, give outstanding testimony to the Kingdom of heaven by shedding their blood or by the heroic practice of virtues.

The Church, in turn, from the earliest beginnings of Christianity has always believed that the Apostles and Martyrs are more closely joined to us in Christ and has venerated them, together with the Blessed Virgin Mary and the holy Angels, with special devotion, devoutly imploring the aid of their intercession. To these were soon added others also who had imitated more closely the virginity and poverty of Christ and, finally, others whose outstanding practice of the Christian virtues and whose divine charisms commended them to the pious devotion of, and imitation by, the faithful.

When we consider the life of those who have faithfully followed Christ, we are inspired with a new reason to seek the City that is to come and we are most safely taught the path by which, amid the changing things of this world and in keeping with the state in life and condition proper to each of us, we can arrive at that perfect union with Christ, which is holiness. Surrounded as we are by such an array of witnesses, through whom God is present to us and speaks to us, we are powerfully drawn to reach His Kingdom in heaven.(2)

From time immemorial, the Apostolic See has accepted these signs and has listened to the voice of her Lord with the greatest reverence and docility. Faithful to the serious duty entrusted to her of teaching, sanctifying and governing the People of God, she proposes to the faithful for their imitation, veneration and invocation, men and women who are outstanding in the splendor of charity and other evangelical virtues and, after due investigations, she declares them, in the solemn act of canonization, to be Saints.

The instruction of causes of canonization, which Our Predecessor Sixtus V entrusted to the Congregation of Sacred Rites, which he himself had established,(3) was, with the passage of time, always improved by new norms. Worthy of special mention are those of Urban VIII,(4) which Prosper Lambertini (later Benedict XIV), drawing upon the experiences of time past, handed down to later generations in a work entitled De Servorum Dei beatif?catione et de Beatorum canonizatione. This work served as the rule of the Sacred Congregation of Rites for almost two centuries. Finally, these norms were substantially incorporated into the Code of Canon Law promulgated in 1917.

Since recent progress in the field of historical studies has shown the necessity of providing the competent Congregation with an apparatus better suited for its task so as to respond more adequately to the dictates of historical criticism, Our Predecessor of happy memory, Pius XI, in the Apostolic Letter Già da qualche tempo, issued motu proprio on February 6, 1930, established the "Historical Section" within the Sacred Congregation of Rites and entrusted it with the study of "historical" causes.(5) On January 4, 1939, the same Pontiff also ordered the publication of Normae servandae in construe?dis processibus ordinariis super causis historicis ,(6)

which made the "apostolic" process no longer necessary so that a single process would then be conducted with ordinary authority in "historical" causes.

In the Apostolic Letter Sanctitas clarior, given motu proprio on March 19, 1969,(7) Paul VI established that even in recent causes there would be only one cognitional process for gathering proofs, which the Bishop conducts with previous permission, nevertheless, from the Holy See.(8) The same Pontiff, in the Apostolic Constitution Sacra Rituum Congregatio (9) of May 8, 1969, established two new Dicasteries in place of the Sacred Congregation of Rites. To one he gave the responsibility of regulating divine Worship and to the other, that of dealing with the causes of saints; on that same occasion, he changed, somewhat, the procedure to be followed in these causes.

Most recent experience, finally, has shown us the appropriateness of revising further the manner of instructing causes and of so structuring the Congregation for the Causes of Saints that we might meet the needs of experts and the desires of Our Brother Bishops, who have often called for a simpler process while maintaining the soundness of the investigation in matter of such great import. In light of the doctrine of the Second Vatican Council on collegiality, We also think that the Bishops themselves should be more closely associated with the Holy See in dealing with the causes of saints.

Therefore, having abrogated all laws of any kind which pertain to this matter, we establish that these following norms are henceforth to be observed.

I

INQUIRIES TO BE MADE BY BISHOPS

1) It is the right of diocesan Bishops or Bishops of the Eastern Rite and others who have the same powers in law, within the limits of their own jurisdiction, either ex officio or upon the request of individual members of the faithful or of legitimate groups and their representatives, to inquire about the life, virtues or martyrdom and reputation of sanctity or martyrdom, alleged miracles, as well as, if it be the case, ancient cult of the Servant of God, whose canonization is sought.

2) In inquiries of this kind, the Bishop is to proceed according to the particular Norms to be published by the Sacred Congregation for the Causes of Saints. This is the order to be followed:

1. From the postulator of the cause, legitimately appointed by the petitioner, the Bishop is to seek out accurate information about the life of the Servant of God and likewise be thoroughly informed by the postulator of the reasons which seem to support promoting the cause of canonization.

2. If the Servant of God has published any writings, the Bishop is to see to it that they are examined by theological censors.

3. If the writings have been found to contain nothing contrary to faith and good morals, then the Bishop should order persons qualified for this task to collect other unpublished writings (letters, diaries, etc.) as well as all documents, which in any way pertain to the cause. After they have faithfully completed their task, they are to write a report on their investigations.

4. If the Bishop has prudently judged that, on the basis of all that has been done so far, the cause can proceed, he is to see to it that those witnesses proposed by the postulator and others to be called ex officio are duly examined.

If, indeed, it is urgent that witnesses be examined lest any proofs be lost, they are to be questioned even though the gathering of the documents has not yet been completed.

5. The inquiry into alleged miracles is to be conducted separately from the inquiry into virtues or martyrdom.

6. When the inquiries are complete, a transcript of all the acts is to be sent in duplicate to the Sacred Congregation, together with a copy of the books of the Servant of God which were examined by the theological censors and their judgment as well.

Furthermore, the Bishop is to attach a declaration on the observance of the decrees of Urban VIII regarding the absence of cult.

II

THE SACRED CONGREGATION FOR THE CAUSES OF SAINTS

3) The Sacred Congregation for the Causes of Saints is presided over by a Cardinal Prefect, assisted by a Secretary. Its duty is to deal with those matters which pertain to the canonization of Servants of God by providing advice and guidelines to Bishops in the instruction of the causes, by studying the causes thoroughly and, finally, by casting its vote.

It is also the duty of the Congregation to decide those things which pertain to the authenticity and preservation of relics.

4) The duty of the Secretary is:

1. to handle business with those outside the Congregation, especially with Bishops who are instructing causes;

2. to take part in the discussions about the merit of a cause and to cast a vote in the meeting of the Cardinal and Bishop Members of the Congregation;

3. to draw up the report that is to be given to the Supreme Pontiff on how the Cardinals and Bishops voted.

5) The Secretary is assisted in fulfilling his duty by an Undersecretary, whose task is primarily to ascertain whether the rules of law have been followed in the instruction of the causes. The Secretary is also assisted by an appropriate number of minor Officials.

6) For the purpose of studying the causes there exists in the Sacred Congregation a College of Relators, presided over by a Relator General.

7) The individual Relators are:

1. to study the causes entrusted to them, together with collaborators from outside the Congregation, and to prepare the Positions on virtues or on martyrdom;

2. to prepare written explanations of an historical nature which may have been requested by the Consultors;

3. to be present as experts at the meeting of the theologians, although without the right to vote.

8) One of the Relators shall be especially selected to prepare the Positions on miracles. He will take part in the meetings of the physicians and of the theologians.

9) The Relator General, who presides over the meeting of the historical Consultors, is to be aided in his study by some Assistants.

10) The Sacred Congregation is to have one Promotor of the Faith or Prelate Theologian. His responsibility is:

1. to preside over the meeting of the theologians, with the right to vote;

2. to prepare the report on the meeting itself;

3. to be present as an expert at the meeting of the Cardinals and Bishops, although without the right to vote.

If necessary for one or another cause, a Promotor of the Faith for that particular case can be nominated by the Cardinal

Prefect.

11) Consultors are to be drawn from various parts of the world to deal with the causes of Saints. Some are to be experts in historical matters and others in theology, particularly in spiritual theology.

12) There is to be a board of medical experts in the Sacred Congregation whose responsibility is to examine healings which are proposed as miracles.

III

PROCEDURE IN THE SACRED CONGREGATION

13) When the Bishop has sent to Rome all the acts and documents pertaining to a cause, the procedure in the Sacred Congregation for the Causes of Saints is as follows:

1. First of all, the Undersecretary is to verify whether all the rules of law have been followed in the inquiries conducted by the Bishop. He is to report the result of his examination in the ordinary meeting of the Congregation.

2. If the meeting judges that the cause was conducted according to the norms of law, it decides to which Relator the cause is to be assigned; the Relator, then, together with a collaborator from outside the Congregation, will prepare the Position on virtues or on martyrdom according to the rules of critical hagiography.

3. In ancient causes and in those recent causes whose particular nature, in the judgment of the Relator General, should demand it, the published Position is to be examined by Consultors who are specially expert in that field so that they can cast their vote on its scientific value and whether it contains sufficient elements required for the scope for which the Position has been prepared.

In particular cases, the Sacred Congregation can also give the Position to other scholars, who are not part of the group of Consultors, for their examination.

4. The Position (together with the votes of the historical Consultors as well as any new explanations by the Relator, should they be necessary) is handed over to the theological Consultors, who are to cast their vote on the merit of the cause; their responsibility, together with the Promotor of the Faith, is to study the cause in such a way that, before the Position is submitted for discussion in their special meeting, controversial theological questions, if there be any, may be examined thoroughly.

5. The definitive votes of the theological Consultors, together with the written conclusions of the Promotor of the Faith, are submitted to the judgment of the Cardinals and Bishops.

14) The Congregation examines cases of alleged miracles in the following way:

1. The Relator assigned to this task is to prepare a Position on alleged miracles. They are discussed in a meeting of experts (in the case of healings, in a meeting of physicians), whose votes and conclusions are set forth in an accurate report.

2. Then the miracles are to be discussed in the special meeting of the theologians and, finally, in that of the Cardinals and Bishops.

15) The results of the discussions of the Cardinals and Bishops are reported to the Supreme Pontiff, who alone has the right to declare that public cult may be given by the Church to Servants of God.

16) By a special decree, the Sacred Congregation itself will establish the procedure to be followed henceforth in the individual causes of canonization whose judgment is presently pending at the Sacred Congregation, in accordance, however, with the spirit of this new law.

17) All that which we have established in this Our Constitution is to take effect from this very day.

Moreover, we wish that these Our statutes and rules should be, now and hereafter, binding and effective and, insofar as is necessary, we abrogate the Apostolic Constitutions and Regulations published by Our Predecessors and all other rules, including those which are worthy of special mention and derogation.

Given in Rome, at Saint Peter's, on the 25th day of the month of January in the year 1983, the 5th of Our Pontificate.

IOANNES PAULUS PP II

* English translation prepared by the Congregation for the Causes of Saints. (1) Const. dogm. Lumen gentium , n. 40. (2) Cfr. ibid, n. 50. (3) Const. Apost. Immensa Aeterni Dei, diei 22 ianuarii 1588. Cfr. Bullarium Romanum, ed. Taurinensis, t. VIII, pp. 985-999.

(4) Litt. Apost. Caelestis Hierusalem cives, diei 5 iulii 1634; Urbani VIII P.O.M. Decreta servanda in beatificatione et canonizatione Sanctorum, diei 12 martii 1642.

(5) AAS 22 (1930), pp. 87-88.

(6) AAS 31 (1939), pp. 174-175.

(7) AAS 61 (1969), pp. 149-153.

(8) Ibid., nn. 3-4.

(9) AAS 61 (1969), pp. 297-305.

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